

AceCam™ Golf Terms and Conditions

These terms and conditions (“Agreement”) set forth the general terms and conditions of your use of the “AceCam™ Golf” mobile application (“Mobile Application” or “Service”) and any of its related products and services (collectively, “Services”). This Agreement is legally binding between you (“User”, “you” or “your”) and AceCam™ Golf LLC (doing business as “AceCam”, “we”, “us” or “our”). If you are entering into this Agreement on behalf of a business or other legal entity, you represent that you have the authority to bind such entity to this Agreement, in which case the terms “User”, “you” or “your” shall refer to such entity. If you do not have such authority, or if you do not agree with the terms of this Agreement, you must not accept this Agreement and may not access and use the Mobile Application and Services. By accessing and using the Mobile Application and Services, you acknowledge that you have read, understood, and agree to be bound by the terms of this Agreement. You acknowledge that this Agreement is a contract between you and AceCam, even though it is electronic and is not physically signed by you, and it governs your use of the Mobile Application and Services.

Accounts and Membership

1. Eligibility

To use the AceCam Mobile Application and Services, you must be at least 13 years of age. If you are under 18, you may create an account but are not permitted to participate in contests or create wagers. By creating an account, you represent and warrant that you meet these age requirements. If you are accessing the Services on behalf of a business or other legal entity, you affirm that you have the authority to bind such entity to these Terms.

2. Account Creation

To access certain features of our Services, you may be required to create an account. When creating an account, you agree to provide accurate, current, and complete information about yourself as prompted by the registration form and to update such information as necessary to keep it accurate, current, and complete. You are solely responsible for maintaining the confidentiality of your account credentials and for all activities that occur under your account.

3. Account Security

You agree to notify AceCam immediately of any unauthorized use of your account or any other breach of security. AceCam will not be liable for any loss or damage arising from your failure to comply with this security obligation. We reserve the right to suspend or terminate your account if we suspect any unauthorized activity or violation of these Terms.

4. Account Verification

AceCam reserves the right, but not the obligation, to verify any information provided during the account creation process. We may monitor and review new accounts before granting access to our Services. This includes, but is not limited to, confirming your age and identity.

5. Account Suspension and Termination

We reserve the right to suspend or terminate your account at any time, with or without cause or notice, including but not limited to instances where you violate these Terms, engage in conduct harmful to our reputation, or misuse our Services. If your account is terminated for any reason, you may not re-register for the Services.

6. User Responsibilities

You agree to use your account only for lawful purposes and in accordance with these Terms.

You are responsible for all actions taken under your account and for ensuring that your account is not used by any unauthorized persons.

7. Membership Benefits

Upon creating an account, you may receive access to certain features and benefits of the AceCam Services, including personalized content, notifications, and the ability to participate in contests and events (if you are 18 years or older). Membership benefits may vary and are subject to change at our discretion.

8. Changes to Membership Terms

AceCam reserves the right to modify these membership terms at any time. We will notify you of any material changes by posting a notice in the Mobile Application or via email. Your continued use of the Services after any changes constitutes your acceptance of the modified terms.

User Content

1. Ownership of User Content

You retain ownership of any content you submit, post, or display (collectively, "User Content") through the Mobile Application and Services. By submitting User Content, you grant AceCam a worldwide, non-exclusive, royalty-free, perpetual, and irrevocable license to use, reproduce, modify, publish, and distribute such User Content for the purpose of providing and promoting our Services.

2. User Responsibilities

You are solely responsible for the User Content you create and share through our Services. This includes ensuring that your User Content does not violate any third-party rights, including copyright, trademark, privacy, or publicity rights. You warrant that you have the necessary rights to grant AceCam the license granted in this Agreement.

3. Monitoring and Review

While AceCam does not routinely monitor User Content, we reserve the right to review, monitor, and remove any User Content that, in our sole discretion, violates these Terms or is otherwise objectionable. We may take such actions without prior notice and will not be liable for any loss or damage resulting from our decision to remove User Content.

4. Prohibited Content

You agree not to submit User Content that:

- Is unlawful, harmful, threatening, abusive, harassing, defamatory, vulgar, obscene, or otherwise objectionable;
- Infringes upon the intellectual property rights of any third party;
- Contains software viruses or any other computer code, files, or programs designed to interrupt, destroy, or limit the functionality of any computer software or hardware;
- Promotes or encourages illegal activity or conduct that is harmful to others.

5. Reporting Violations

If you become aware of any User Content that violates these Terms, please report it to us at support@acecamgolf.com. We will investigate any such reports and take appropriate action.

User Responsibilities

As a user of the AceCam Mobile Application and Services, you agree to the following responsibilities:

1. **Account Security**

You are responsible for maintaining the confidentiality of your account credentials and for all activities that occur under your account. You must notify AceCam immediately of any unauthorized use of your account or any other breach of security.

2. **Accurate Information**

You agree to provide accurate, current, and complete information during the registration process and to update such information to keep it accurate, current, and complete.

3. **Compliance with Laws**

You agree to use the Services in compliance with all applicable laws, regulations, and ordinances. You are responsible for ensuring that your participation in contests or other activities facilitated by AceCam does not violate any local laws or regulations.

4. **Respect for Other Users**

You agree to treat other users with respect and to refrain from any behavior that could be considered abusive, harassing, or otherwise harmful to other users.

5. **Content Responsibility**

You are solely responsible for any User Content you submit, post, or display while using the Services. AceCam is not responsible for the accuracy, legality, or appropriateness of any User Content, and you agree to indemnify AceCam for any claims arising from your User Content.

6. **Notification of Issues**

If you encounter any issues while using the Services, including technical difficulties or content-related concerns, you agree to notify AceCam promptly at support@acecamgolf.com.

7. **Participation in Contests**

If you participate in any contests facilitated by AceCam, you agree to abide by the rules and regulations set forth for those contests. You acknowledge that your performance may be recorded and shared as part of the contest experience.

Prohibited Activities

In addition to other terms set forth in these Terms and Conditions, you are prohibited from using the AceCam Mobile Application and Services or any Content in any of the following ways:

1. **Illegal Activities:** For any unlawful purpose or to solicit others to participate in unlawful acts.

2. **Regulatory Violations:** To violate any international, federal, provincial, state regulations, rules, laws, or local ordinances.
3. **Intellectual Property Infringement:** To infringe upon or violate AceCam's intellectual property rights or the intellectual property rights of others.
4. **Harassment and Discrimination:** To harass, abuse, insult, harm, defame, slander, disparage, intimidate, or discriminate against any individual based on gender, sexual orientation, religion, ethnicity, race, age, national origin, or disability.
5. **False Information:** To submit false or misleading information.
6. **Malicious Software:** To upload or transmit viruses or any other type of malicious code that may affect the functionality or operation of the Mobile Application and Services, third-party products and services, or the Internet.
7. **Spam and Data Mining:** To spam, phish, pharm, pretext, spider, crawl, or scrape the Services or any associated content.
8. **Obscene or Immoral Purposes:** For any obscene, immoral, or unethical purposes.
9. **Interference with Security:** To interfere with or circumvent the security features of the Mobile Application and Services, third-party products and services, or the Internet.
10. **Unauthorized Access:** Attempting to gain unauthorized access to other users' accounts or AceCam's computer networks, systems, or infrastructure, by any means.
11. **Reverse Engineering:** Attempting in any way to reverse engineer, decompile, disrupt, or disassemble any part of the Services or its security features.

Reporting Violations: If you observe any violations of these prohibitions, please report them to us at support@acecamgolf.com. We reserve the right to investigate any reported violations and to terminate your use of the Mobile Application and Services for violating any of the prohibited uses.

Third-Party Links

The AceCam Mobile Application and Services may contain links to third-party websites, applications, or services that are not owned or controlled by AceCam. We do not control these third-party services and assume no responsibility for their content, privacy policies, or practices.

1. **No Endorsement**
The inclusion of any link or embedded content does not imply endorsement by AceCam of the activities or content of these sites, nor any association with their operators.
2. **User Responsibility**
You acknowledge that by accessing third-party links, you assume all risks associated with known or unknown outcomes. AceCam is not responsible for any damage or loss resulting from your interactions with such third-party sites or services.

3. **Examples of Third-Party Links**

Examples of third-party sites or services that may be linked to include, but are not limited to, social media platforms (e.g., Facebook, Instagram, Twitter), video sharing services (e.g., YouTube), and other websites that may offer content sharing capabilities.

4. **Consent for Use of Content**

If you participate in contests or events organized by AceCam, you may consent to the use of photos or videos taken during those events for promotional purposes on our social media channels and other marketing materials.

5. **Embedded Content**

Any content that is embedded or linked to from third-party sites is provided for your convenience. Your use of such content is at your own risk, and we encourage you to review the terms and conditions of any third-party services you interact with.

Intellectual Property Rights

1. Ownership

All content, features, and functionality of the AceCam Mobile Application and Services, including but not limited to text, graphics, logos, icons, images, audio clips, video clips, software, and data compilations (collectively, "Content"), are the exclusive property of AceCam Golf LLC and its licensors. This Content is protected by United States and international copyright, trademark, patent, trade secret, and other intellectual property or proprietary rights laws.

2. License to Users

Subject to your compliance with these Terms, AceCam grants you a limited, non-exclusive, non-transferable, and revocable license to access and use the Mobile Application and Services for personal, non-commercial purposes. This license does not permit you to:

- Copy, modify, create derivative works of, publicly display, publicly perform, republish, or distribute any Content from the Mobile Application or Services.
- Use any data mining, robots, or similar data gathering and extraction tools on the Mobile Application or Services.
- Remove, alter, or obscure any copyright, trademark, or other proprietary rights notices from copies of materials from the Mobile Application or Services.

3. User Restrictions

You agree not to:

- Use the Mobile Application or Services in any manner that could disable, overburden, damage, or impair the Services or interfere with any other party's use of the Services.
- Use the Mobile Application or Services for any illegal or unauthorized purpose, or in violation of any applicable law or regulation.
- Use any Content for commercial purposes without obtaining a license to do so from AceCam or our licensors.

4. Third-Party Trademarks

All trademarks, service marks, and trade names (collectively, "Marks") that appear on the Mobile Application and Services are the property of AceCam or other respective owners. You may not use any Marks without the prior written permission of AceCam or the respective trademark owner.

5. Reporting Infringement

If you believe that your intellectual property rights have been violated by any User Content or other materials on the Mobile Application or Services, please contact us at support@acecamgolf.com. We will investigate any claims of infringement and take appropriate action in accordance with applicable laws.

Indemnification

1. User Agreement to Indemnify

You agree to indemnify, defend, and hold harmless AceCam Golf LLC, its affiliates, licensors, and service providers, and its and their respective officers, directors, employees, contractors, agents, suppliers, licensors, and successors (collectively, the "Indemnified Parties") from and against any claims, liabilities, damages, judgments, awards, losses, costs, expenses, or fees (including reasonable attorneys' fees) arising out of or relating to your violation of these Terms or your use of the Mobile Application and Services, including, but not limited to:

- Your User Content.
- Your violation of any applicable law or regulation.
- Your infringement of any third-party rights, including intellectual property rights or rights of privacy.
- Any breach of your representations and warranties set forth in these Terms.

2. Scope of Indemnification

The indemnification obligations outlined herein apply to any claims made by third parties arising from your conduct while using the Services, including but not limited to any unauthorized use of the Services, any content you post, or any other actions taken in connection with your account.

3. Legal Fees

In the event of any claim or legal action arising from your use of the Services, you agree to reimburse AceCam for all reasonable legal fees and expenses incurred in connection with the investigation and defense of such claims, including any settlement costs.

4. Notification of Claims

In the event that any claim is brought against any of the Indemnified Parties, we will provide you with written notice of such claim. You will have the right to assume the defense of the claim with counsel reasonably acceptable to AceCam; however, you shall not settle any claim without the prior written consent of AceCam, which consent shall not be unreasonably withheld.

5. Course-Related Indemnification

You agree to indemnify and hold harmless the Indemnified Parties from any claims, liabilities, damages, judgments, losses, costs, expenses, or fees (including reasonable attorneys' fees)

arising from your interactions with golf courses using the AceCam Services, including but not limited to:

- Any disputes arising from reservations, participation in events, or any other activities conducted at or related to such courses.
- Your compliance with the rules, policies, and procedures of the golf courses you interact with while using our Services.

Limitation of Liability

1. Disclaimer of Warranties

The Services provided by AceCam, including but not limited to the Mobile Application, the capture of video and photographic content, and the facilitation of contests and events, are offered on an "as-is" and "as-available" basis. AceCam makes no representations or warranties of any kind, either express or implied, regarding the reliability, availability, accuracy, or completeness of the Services. Specifically, AceCam disclaims all warranties, express or implied, including but not limited to implied warranties of merchantability, fitness for a particular purpose, and non-infringement. We do not guarantee that the Services will be uninterrupted, secure, or free from errors or harmful components.

2. Limitation of Liability

To the maximum extent permitted by applicable law, in no event shall AceCam or its affiliates, licensors, or service providers be liable for any indirect, incidental, consequential, special, or punitive damages, including but not limited to loss of profits, loss of data, loss of use, or any other damages arising out of or in connection with your access to or use of, or inability to access or use, the Services, including the capturing and sharing of video or photographic content, or any linked websites.

3. Exclusions

Some jurisdictions do not allow the exclusion or limitation of liability for consequential or incidental damages, so the limitations above may not apply to you. In such jurisdictions, AceCam's liability is limited to the fullest extent permitted by law.

4. Maximum Liability

In any event, AceCam's total liability to you for all claims arising out of or relating to these Terms or your use of the Services shall not exceed the amounts paid by you, if any, for accessing the Services in the twelve (12) months preceding the claim. This limitation applies specifically to any claims related to the content captured by the AceCam platform and any contests facilitated through our Services.

Dispute Resolution

1. Governing Law

This Agreement shall be governed by and construed in accordance with the laws of the State of Michigan, without regard to its conflict of law principles. By using the AceCam Mobile Application

and Services, you consent to the jurisdiction of the courts located in Michigan for any disputes arising out of this Agreement.

2. Arbitration Agreement

You agree that any disputes, claims, or controversies arising out of or relating to this Agreement or your use of the Services shall be resolved through binding arbitration rather than in court. The arbitration will be conducted by the American Arbitration Association (AAA) in accordance with its Consumer Arbitration Rules. The arbitration shall take place in Michigan, and you and AceCam agree to submit to the personal jurisdiction of the state and federal courts located in Michigan for the purposes of enforcement of this arbitration agreement.

3. Waiver of Jury Trial

You acknowledge and agree that by entering into this Agreement, you are waiving your right to a jury trial. This means that any dispute will be decided by a neutral arbitrator instead of a judge or jury.

4. Class Action Waiver

You further agree that any disputes will be conducted on an individual basis, and not as a class action or representative action. This means that you may not bring a claim as a class member or representative in any lawsuit against AceCam.

5. Contest Disputes

Any disputes arising from or related to contests facilitated by AceCam, including but not limited to eligibility, scoring, verification of shots, and prizes, shall also be subject to the arbitration requirements outlined in this section. Participants acknowledge that while AceCam strives for accuracy in shot verification, unforeseen events or technical malfunctions may result in inaccuracies. Therefore, you agree that AceCam shall not be held liable for any discrepancies in scoring or verification that may arise during contests. All contest-related disputes must be resolved through binding arbitration, and participants waive any right to pursue claims in court or on a class basis.

6. Notice of Dispute

If you have a dispute with AceCam, you must first notify us in writing at support@acecamgolf.com, providing us with a description of the dispute and the relief you seek. We will make every effort to resolve the dispute amicably. If we are unable to resolve the dispute within thirty (30) days after we receive your notice, you may then initiate arbitration as described above.

Changes to the Terms

1. Right to Modify

AceCam Golf LLC reserves the right to modify these Terms at any time in its sole discretion. Any changes will be made to improve user experience, comply with legal requirements, or reflect changes in our services.

2. Notification of Changes

When changes are made to these Terms, we will notify you by posting the revised Terms in the

Mobile Application and/or sending you an email to the address associated with your account. It is your responsibility to review the Terms periodically to stay informed about any updates.

3. Effective Date of Changes

Changes to these Terms will take effect immediately upon posting in the Mobile Application or as otherwise indicated in the notification. The "Last Updated" date at the beginning of these Terms will be revised to reflect the date of the most recent changes.

4. Continued Use

Your continued use of the Mobile Application and Services after the effective date of the revised Terms constitutes your acceptance of the modified Terms. If you do not agree to the changes, you must stop using the Services immediately.

Termination

1. Termination by AceCam

AceCam Golf LLC reserves the right to terminate or suspend your access to the Mobile Application and Services, without prior notice or liability, for any reason, including but not limited to:

- Violation of these Terms.
- Engaging in conduct that AceCam, in its sole discretion, deems harmful to the Services or other users.
- Failure to provide accurate information during account registration.
- Any behavior that negatively impacts AceCam's reputation or goodwill.

2. User Termination

You may terminate your account at any time by contacting AceCam at support@acecamgolf.com. Upon termination, you will no longer have access to your account and any associated content.

3. Effects of Termination

Upon termination of your account:

- All of your User Content may be deleted from our systems, and you may lose access to any personalized content or features associated with your account.
- Any outstanding obligations or liabilities incurred prior to the termination shall remain in effect.

4. Survival of Terms

The provisions of these Terms that by their nature should survive termination shall survive, including but not limited to ownership provisions, indemnification, limitations of liability, and dispute resolution.

Miscellaneous

1. Severability

If any provision of these Terms is found to be unenforceable or invalid by a court of competent jurisdiction, the remaining provisions of these Terms will remain in full force and effect. The unenforceable provision will be deemed modified to the extent necessary to make it enforceable.

2. Waiver

The failure of AceCam to enforce any right or provision of these Terms shall not be deemed a waiver of such right or provision or any other right or provision. Any waiver of any provision of these Terms will be effective only if in writing and signed by an authorized representative of AceCam.

3. Entire Agreement

These Terms, along with the Privacy Policy and any other legal notices or agreements published by AceCam, constitute the entire agreement between you and AceCam regarding your use of the Services. They supersede all prior agreements and understandings, whether written or oral, regarding the subject matter.

4. Assignment

AceCam may assign its rights and obligations under these Terms at any time, in whole or in part, without notice. You may not assign or transfer any of your rights or obligations under these Terms without prior written consent from AceCam.

5. Force Majeure

AceCam shall not be liable for any failure to perform its obligations under these Terms if such failure results from any cause beyond AceCam's reasonable control, including, but not limited to, mechanical, electronic, or communications failure or degradation.

Contact Information

If you have any questions, concerns, or requests regarding these Terms or your use of the AceCam Mobile Application and Services, please contact us at:

Email: support@acecamgolf.com

Physical Address: 1012 Equestrian Dr, South Lyon, MI 48178

Last Updated: October 22, 2024

We aim to respond to all inquiries within 48 hours. Your feedback and questions are important to us, and we are here to help!

Effective Date

These Terms and Conditions are effective as of October 22, 2024. By accessing or using the AceCam Mobile Application and Services, you acknowledge that you have read, understood, and agree to be bound by these Terms.